

Form 59.09

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [complete the heading as required by Rule 82 - Administration of Civil Proceedings]

[full name, including middle name(s)]

Petitioner

and

[full name, including middle name(s)]

Respondent

Petition for Divorce

To: [name of respondent]

An action was started for divorce

The petitioner started this action to apply for a divorce and to claim other relief described later in this petition for divorce.

The action was started by filing this petition with the court on the date certified by the court officer.

Deadline for answer

To defend the action, or to make your own claim in the proceeding, you or your counsel must file an answer with the court no more than the following number of days after the day this petition for divorce is delivered to you:

- 15 days if delivery is made in Nova Scotia
- 30 days if delivery is made elsewhere in Canada
- 45 days if delivery is made anywhere else.

Judgment against you if you do not answer

The court may grant a divorce order and an order for the other relief claimed, unless you file the answer before the deadline.

No remarriage until after order and appeal period

Except when allowed by a judge in special circumstances after undertakings not to appeal are filed, a married person is not free to remarry until after a divorce is granted and the times for appeals are over, or an appeal is started but the divorce is upheld and the time for any further appeal is over. The court provides a divorce certificate only at that time.

Claims under the *Divorce Act*

The petitioner claims a divorce under section 8 of the *Divorce Act*, and the following relief under the following sections of the *Divorce Act*: [may delete any that do not apply]

- 9 decision-making responsibility (s. 16)
- 9 parenting time (s. 16) [choose one]
 - 9 primary care (time in excess of 60%)
 - 9 shared parenting (time between 40-60%)
 - 9 other
- 9 child support (s. 15.1)
 - 9 administrative recalculation of child support (s. 25.1)
- 9 spousal support (s. 15.2)
- 9 other: [describe] .

Claims under other legislation

The petitioner claims under the following legislation for the following relief: [may delete any that do not apply]

- 9 *Matrimonial Property Act* for the following:
 - 9 exclusive possession of matrimonial home (s. 11)
 - 9 division of assets (s. 12)
 - 9 other [give specifics, i.e. s. 13, s. 18] .
- 9 *Pension Benefits Act*, *Pension Benefits Division Act*, or other legislation to enable a division of pension, for a division of pension
- 9 *Change of Name Act* (s. 7) for a change of registered name
- 9 Other: [describe] .

Ground for divorce and particulars

There was a breakdown of the marriage of the parties and in particular: [may delete any that do not apply]

- 9 The parties were living separate and apart since [day, month, and year] , were living separate and apart at the time this action was started, and will have lived separate and apart for no less than one year when this action is determined.
- 9 The respondent has committed adultery and there was no condonation or connivance on the part of the petitioner.
- 9 The respondent has treated the petitioner with physical or mental cruelty of such kind as to render intolerable the continued cohabitation of the spouses, and there was no condonation or connivance on the part of the petitioner.

No reconciliation

There is no possibility of reconciliation between the parties.

No improper conduct

There was no collusion between the parties leading to this petition for divorce.

Details of the marriage

[The details of the marriage sought to be dissolved are shown on the attached marriage certificate and as set out below. It is not possible to attach a marriage certificate to this petition for divorce and the following are the details of the marriage:]

- Date of marriage:
- Place of marriage:
- Surnames and given names on the day before marriage
petitioner:
respondent:
- Surnames and given names on birth certificate
petitioner:
respondent:
- Gender on the day before marriage
petitioner: ☐ male ☐ female ☐ other
respondent: ☐ male ☐ female ☐ other
- Marital status when married
petitioner: ☐ single ☐ divorced
respondent: ☐ single ☐ divorced
- Place and date of birth
petitioner:
respondent:

Jurisdiction

The petitioner lives in _____ [community] _____, and the respondent lives in _____ [community] _____. *[The petitioner/The respondent]* was habitually resident in Nova Scotia for at least one year before the day this petition is signed and, in particular since _____.

Children

The following are the full names and dates of birth of the children of the marriage as defined in the *Divorce Act*:

Name	Date of Birth
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Decision-making responsibility arrangements

Present arrangements for decision-making responsibility of the children are as follows:

Parenting time arrangements

Present arrangements for parenting time with the children are as follows:

Child support arrangements

Present arrangements for child support are as follows:

Agreements

Details of all agreements about separation, parenting, property, and support are as follows:

Other relevant proceedings and orders [may delete the one that does not apply]

9 There are, and there were, no other proceedings between the parties, or proceedings/ circumstances affecting the well-being or safety of the children/parties.

OR

9 There are, or there were, other proceedings between the parties, or proceedings/circumstances affecting the well-being or safety of the children/parties, details of which are as follows: [complete the sections below for each proceeding]

Type of proceeding(s) & court file number: [describe each, for instance civil, protection, criminal or other proceeding]

Order(s) or other measure: [describe, such as an order to protect a person's safety, recognizance or undertaking, peace bond, condition, etc.]

Circumstance(s): [describe]

Documents in support

The **petitioner** files the following documents in support of the petition:

- 9 parenting statement
- 9 statement of income
- 9 statement of special or extraordinary expenses
- 9 statement of undue hardship circumstances
- 9 statement of expenses
- 9 statement of property
- 9 affidavit of [name]
- 9 other affidavits and documents [give specifics]

A copy of each document is to be delivered to you with this petition.

Required to file documents

There are requirements in the **Nova Scotia Civil Procedure Rules** for parties to file documents and these requirements depend on the type of relief sought. A judge or court officer may direct you to file documents and provide information by a specific date in response to this petition.

Filing and delivering documents

Any documents you file with the court must be filed at the courthouse at _____ [Street/Avenue], _____, Nova Scotia (telephone # _____).

When you file a document you must immediately deliver a copy of it to the other party, unless the document is part of an *ex parte* motion, the parties agree delivery is not required, or a judge orders it is

not required.

Contact information

The petitioner designates the following address:

Documents delivered to this address are considered received by the petitioner on delivery.

Proposed place of trial

The petitioner proposes that, if you file an answer, the trial will be held in _____, Nova Scotia.

Declaration & certificate

I declare that the statements in this petition for divorce are true to the best of my personal knowledge, or information given to me that I believe to be true, and I certify that I am aware of my duties under sections 7.1 through 7.5 of the *Divorce Act* which include:

1. I must exercise any parenting time or decision-making responsibility that I have with respect to any child/children of the marriage in a manner that is consistent with the best interests of the child/children;
2. To the best of my ability, I must protect the child/children of the marriage from conflict arising from this proceeding;
3. To the extent that it is appropriate to do so, I must try to resolve the issues in this proceeding through a family dispute resolution process;
4. I must provide complete, accurate and up-to-date information as required under the *Divorce Act*, as part of this proceeding and under a Court Order; and,
5. If I am subject to an order made under the *Divorce Act*, I must follow and comply with the order until it is no longer in effect.

Signed _____, 20____

Signature of petitioner
Print name:

Counsel's certificate [delete if not represented by counsel]

I, counsel for the petitioner, certify that I have complied with the requirements of section 7.7 of the *Divorce Act*.

Signature of counsel

Print name:

Court officer's certificate

I certify that this petition for divorce was filed with the court on _____, 20__.

Court Officer

For delivery with supporting documents to the respondent:
[full name and address]

[Attach marriage certificate.]